

House File 856

H-1087

1 Amend House File 856 as follows:

2 1. Page 1, before line 1 by inserting:

3 <DIVISION I

4 STATE ENTITIES — DIVERSITY, EQUITY, AND INCLUSION ACTIVITIES
5 PROHIBITED>

6 2. Page 5, line 3, after <This> by inserting <division of
7 this>

8 3. Page 5, after line 4 by inserting:

9 <DIVISION ____

10 COMMUNITY COLLEGES — DIVERSITY, EQUITY, AND INCLUSION
11 ACTIVITIES PROHIBITED

12 Sec. _____. Section 261J.1, subsection 3, as enacted by 2024
13 Iowa Acts, chapter 1152, section 31, is amended to read as
14 follows:

15 3. *“Public institution of higher education”* means an
16 institution of higher learning governed by the state board of
17 regents or a community college.

18 Sec. _____. Section 261J.4, as enacted by 2024 Iowa Acts,
19 chapter 1152, section 34, is amended to read as follows:

20 **261J.4 Reporting.**

21 Each ~~public~~ institution of higher education governed by
22 the state board of regents shall, on or before December 1 of
23 each year, submit an annual report to the general assembly and
24 the governor that certifies the ~~public institution of higher~~
25 ~~education’s~~ institution’s compliance with **this chapter**.

26 Sec. _____. 2024 Iowa Acts, chapter 1152, section 36, is
27 amended to read as follows:

28 SEC. 36. FY 2025-2026 APPROPRIATIONS — REALLOCATION. At
29 the close of the fiscal year beginning July 1, 2025, all
30 unexpended moneys appropriated by the general assembly for the
31 fiscal year that would have been expended by an institution
32 of higher learning governed by the state board of regents on
33 diversity, equity, and inclusion offices or diversity, equity,
34 and inclusion officers on or after the effective date of this
35 division of this Act are reallocated to the Iowa workforce

1 grant and incentive program fund established pursuant to
2 section 256.230, subsection 8.

3 DIVISION ____
4 PRIVATE INSTITUTIONS OF HIGHER EDUCATION — DIVERSITY, EQUITY,
5 AND INCLUSION ACTIVITIES PROHIBITED

6 Sec. _____. Section 256.183, subsection 1, unnumbered
7 paragraph 1, Code 2025, is amended to read as follows:

8 “*Accredited private institution*” means an institution of
9 higher learning located in Iowa which is operated privately
10 and not controlled or administered by any state agency or
11 any subdivision of the state and which meets the criteria in
12 paragraphs “a” and “b” and all of the criteria in paragraphs “d”
13 through “j” “k”, except that institutions defined in paragraph
14 “c” of [this subsection](#) are exempt from the requirements of
15 paragraphs “a” and “b”:

16 Sec. _____. Section 256.183, subsection 1, Code 2025, is
17 amended by adding the following new paragraph:

18 NEW PARAGRAPH. k. Adopt a policy for compliance with
19 chapter 261K.

20 Sec. _____. Section 256.183, subsection 3, Code 2025, is
21 amended to read as follows:

22 3. “*Eligible institution*” means an institution of higher
23 learning located in Iowa which is operated privately and
24 not controlled or administered by any state agency or any
25 subdivision of the state, which is not exempt from taxation
26 under section 501(c)(3) of the Internal Revenue Code, and which
27 meets all of the criteria in [subsection 1](#), paragraphs “d”
28 through “j” “k”, and is a school of barbering and cosmetology
29 arts and sciences licensed under [chapter 157](#) and is accredited
30 by a national accrediting agency recognized by the United
31 States department of education. For the fiscal year beginning
32 July 1, 2017, such a school of barbering and cosmetology arts
33 and sciences shall provide a matching aggregate amount of
34 institutional financial aid equal to at least seventy-five
35 percent of the amount received by the institution’s students

1 for Iowa tuition grant assistance under [section 256.191](#). For
2 the fiscal year beginning July 1, 2018, the school of barbering
3 and cosmetology arts and sciences shall provide a matching
4 aggregate amount of institutional financial aid equal to at
5 least eighty-five percent of the amount received in that fiscal
6 year. Commencing with the fiscal year beginning July 1, 2019,
7 and each succeeding fiscal year, the matching aggregate amount
8 of institutional financial aid shall be at least equal to the
9 match provided by eligible institutions under section 261.9,
10 subsection 3, paragraph "a", Code 2023.

11 Sec. _____. NEW SECTION. **261K.1 Definitions.**

12 As used in this chapter, unless the context otherwise
13 requires:

14 1. "*Department*" means the department of education.

15 2. "*Diversity, equity, and inclusion*" means the same as
16 defined in section 261J.1, as enacted by 2024 Iowa Acts, ch.
17 1152, §31.

18 3. "*Diversity, equity, and inclusion office*" means the same
19 as defined in section 261J.1, as enacted by 2024 Iowa Acts, ch.
20 1152, §31.

21 4. "*Private institution of higher education*" means an
22 accredited private institution as defined in section 256.183 or
23 an eligible institution as defined in section 256.183.

24 Sec. _____. NEW SECTION. **261K.2 Diversity, equity, and**
25 **inclusion office prohibited.**

26 1. A private institution of higher education shall not,
27 except as otherwise provided by federal or state law or
28 accreditation standards, establish, sustain, support, or staff
29 a diversity, equity, and inclusion office.

30 2. Subsection 1 shall not be construed to cover or affect a
31 private institution of higher education's funding of any of the
32 following:

33 a. Academic course instruction.

34 b. Research or creative works by the private institution
35 of higher education's students, faculty, or other research

1 personnel, and the dissemination of such research or creative
2 works.

3 *c.* Activities of registered student organizations.

4 *d.* Arrangements for guest speakers and performers with
5 short-term engagements.

6 *e.* Mental or physical health services provided by licensed
7 professionals.

8 3. Subsection 1 shall not be construed as prohibiting bona
9 fide qualifications based on sex that are reasonably necessary
10 to the normal operation of private higher education.

11 Sec. _____. NEW SECTION. **261K.3 Enforcement.**

12 1. Any person may report a private institution of higher
13 education's potential violation of section 261K.2 to the
14 attorney general. The attorney general shall provide notice
15 of such report to the department and the institution within
16 fifteen days. No later than thirty days after receiving such
17 notice, the institution shall do one of the following:

18 *a.* Correct the violation and provide documentation of the
19 correction to the attorney general and the department.

20 *b.* Provide documentation to the attorney general and the
21 department demonstrating that the action of the institution
22 upon which the report was based was not a violation of section
23 261K.2.

24 2. If, upon the conclusion of the thirty-day period
25 provided in subsection 1, the institution has not complied
26 with subsection 1, paragraph "a", or provided documentation
27 under subsection 1, paragraph "b", that demonstrates to
28 the satisfaction of the attorney general that a violation
29 of section 261K.2 did not occur, the institution shall be
30 ineligible to participate in the tuition grant program under
31 chapter 256, subchapter VII, part 4, subpart B, as of the
32 next academic year beginning thereafter. If either action is
33 carried out by the institution by October 1 of an academic
34 year, eligibility shall be restored as of the next academic
35 year beginning after such action is carried out. The attorney

1 general shall notify the college student aid commission to this
2 effect.>

3 4. Title page, by striking lines 1 through 4 and inserting
4 <An Act prohibiting public entities from engaging in certain
5 activities relating to diversity, equity, and inclusion,
6 creating a private cause of action, and including>

7 5. By renumbering as necessary.

COLLINS of Des Moines